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Homicide

1st v 2nd Degree Intentional Homicide

LAW & ORDER

	Intentional (purposefully or knowingly)	**Unintentional** (neither purposefully nor knowingly)	
1st Deg Murder	Premeditated	Felony Murder	**1st Deg Murder**
2nd Deg Murder	Unpremeditated	1. Unlisted Felony 2. Gross Recklessness 3. Intent => GBH	**2nd Deg Murder**
Voluntary Manslaughter	+ Adequate Provocation + Heat of Passion + Insufficient Cooling Time	1. Gross Negligence/ Recklessness 2. Unlawful act	**Involuntary Manslaughter**

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Premeditation

Carroll

Background facts. Carroll and his wife argued quite a bit about his work assignments. She had been diagnosed with a “schizoid personality” disorder and was (perhaps relatedly) abusive toward their children.

Murder. During a lull in a long and heated argument, after his wife fell asleep, Carroll reached up to the window sill, grabbed a loaded pistol, and shot his wife in the back of the head. The jury convicts of 1st degree murder.

Issue. Whether this is first degree “premeditated” murder or only second degree murder.

Carroll

(1) all murder perpetrated by poison or lying in wait; or by any other kind of wilful, deliberate and premeditated killing, or [felony murder], **is murder in the first degree and (2) every other kind of murder is murder in the second degree.**

Good, Bad, Incoherent?

The majority rule (PA) seems pretty arbitrary and opaque. Is it defensible along any policy dimension?

- Historically?
  - Deterrence
  - Desert
  - Expressive Condemnation
- What about now?

Institutionally?

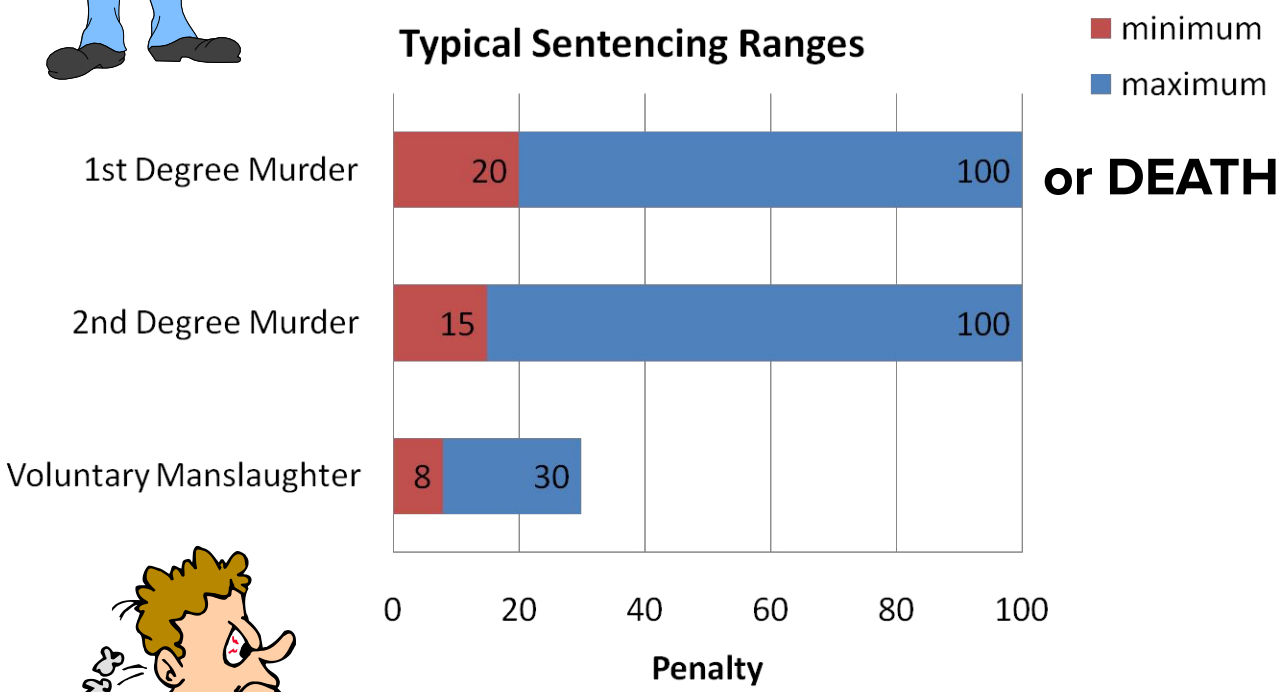
Institutionally?

How would you write a homicide statute?

Common Law Homicide

	Intentional (purposefully or knowingly)	**Unintentional** (neither purposefully nor knowingly)	
1st Deg Murder	Premeditated	Felony Murder	**1st Deg Murder**
2nd Deg Murder	Unpremeditated	1. Felony Murder 2. Gross Recklessness 3. Intent => GBH	**2nd Deg Murder**
Voluntary Manslaughter	+ Adequate Provocation + Heat of Passion + Insufficient Cooling Time	1. Gross Negligence/ Recklessness 2. Unlawful act	**Involuntary Manslaughter**

Why It Matters



Voluntary Manslaughter

<u>Common Law (most states)</u>

Intentional Killing

+ Adequate Provocation

+ Heat of Passion

- Cooling Time

<u>Model Penal Code (few states)</u>

Intentional Killing

+ Extreme Emotional Disturbance

Common Law Approach

Adequate Provocation:

Provocation is adequate if it will inflame the passion of a reasonable person. It must cause the reasonable person to act from passion rather than reason.

Heat of Passion AND

Insufficient Cooling Time

Thornton (Common Law in TN)

She Strays, He Shoots, Judge Winks

In Towson, Md., this week, a Baltimore County judge named Robert E. Cahill did all husbands with tempers and wandering wives a big favor. He said they could shoot to kill with near-impunity. All they have to do in return is serve 18 months in jail and perform 50 hours of community service in — what else? — a domestic violence program.

That is the sentence (half what the prosecution recommended) he handed down to Kenneth Peacock, who in February shot his wife in the head after — considerably after — he found her in bed with another man. Before he put a bullet in her brain, Mr. Peacock indulged in a little wine, a little beer and several hours of argument with his errant spouse.

So long a gap between Mrs. Peacock's infidelity and Mr. Peacock's revenge implies a certain cooling of the so-called "heat of passion," a defense often invoked in comparable cases. But not to Judge Cahill. Not only did he accept Mr. Peacock's plea of voluntary manslaughter but he placed himself on Mr. Peacock's side — or at least in his shoes.

"I seriously wonder," Judge Cahill said, "how many men married five, four years would have the strength to walk away without inflicting some corporal punishment." Then he added that he felt obligated to impose prison time "only because I think I must do it to make the system honest."

In saying that a man can't be blamed for executing a faithless woman, Judge Cahill was presumably speaking for himself. Unfortunately for justice — and for the millions of women who have the tar beaten out of them for offenses far short of infidelity — Judge Cahill made his loaded, loony comment from the bench.

Some Jurisdictions Shifting

MD Code, Criminal Law, § 2-207
Formerly cited as MD CODE Art. 27, § 387; MD CODE Art. 27, § 387A

§ 2-207. Manslaughter

Currentness

Penalty
(a) A person who commits manslaughter is guilty of a felony and on conviction is subject to:

(1) imprisonment not exceeding 10 years; or

(2) imprisonment in a local correctional facility not exceeding 2 years or a fine not exceeding $500 or both.

Spousal adultery not a mitigating factor
(b) The discovery of one's spouse engaged in sexual intercourse with another does not constitute legally adequate provocation for the purpose of mitigating a killing from the crime of murder to voluntary manslaughter even though the killing was provoked by that discovery.

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